



CHAPTER x

An Act to regulate and define the position of the mayor aldermen and burgesses of the borough of Grimsby in relation to the acquisition of lands held for the benefit of the enrolled freemen of the said borough and subject to the provisions of the Grimsby Pastures Act 1849 to relieve the said mayor aldermen and burgesses from the duties of trusteeship in relation to such lands to amend the said Act to provide for the discontinuance of the Freemen's Grammar Schools in Grimsby and for other purposes. [31st May 1949.]

WHEREAS the borough of Grimsby in the county of Lincoln (hereinafter referred to as "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation") acting by the council:

And whereas by the Grimsby Pastures Act 1849 (hereinafter referred to as "the Act of 1849") certain pastures known by the names of the East Marsh Little Field and Hay Croft (in this Act referred to as "the pastures") were vested in the Corporation for an estate in fee simple absolute but nevertheless for the purposes and subject to the provisions of the Act of 1849:

And whereas the Act of 1849 provided (inter alia)—

- (a) for the annual compilation of a list of such of the freemen of the borough (which expression as used in that Act includes the widows of freemen) as should be qualified as in that Act provided and their enrolment in a pasture roll and for the holding of meetings of the said freemen and for the annual appointment of a committee of the enrolled freemen to be called "the pastures committee";

- (b) that the pastures committee should have the regulation of the pastures and the general management of the affairs of the enrolled freemen ;
- (c) that certain of the provisions of the Act of 1849 should be carried into effect by the Corporation and that the mayor of Grimsby if present should preside as chairman at all meetings of the enrolled freemen and that the town clerk and treasurer of the borough should respectively act as secretary or clerk and treasurer to the enrolled freemen ;
- (d) that the surpluses of both capital receipts and income arising under the Act of 1849 after payment of outgoings should enure as to one-twentieth part for the benefit of the Corporation and as to the remaining nineteen-twentieths for the benefit of the enrolled freemen ;
- (e) that the Corporation should in reference to the carrying of the Act of 1849 into execution be so far as the interests of the enrolled freemen are concerned bound by all such resolutions as should from time to time be passed either by the enrolled freemen or within the limits of their authority by the pastures committee ;
- (f) that the Corporation might and should according to the directions of the pastures committee appropriate the pastures or any part thereof for building purposes and might and should according to the directions of the pastures committee sell lease or otherwise dispose of all or any part of the pastures :

And whereas almost the whole of the pastures has now been appropriated for building purposes and sold or leased and the greater number of the leases of the East Marsh pasture will terminate within a few years :

And whereas part of the pastures suffered serious war damage and it is desirable that a considerable part of the pastures should be laid out afresh and redeveloped as a whole with other land adjoining :

And whereas it is important in the public interest that the Corporation for the purposes of their statutory functions should be in a position at any time to secure the acquisition by them of such part or parts of the pastures as they may require for such purposes :

And whereas it is claimed by the enrolled freemen that by reason of the provisions of the Act of 1849 and the position of the Corporation thereunder as trustees for the enrolled freemen the Corporation cannot lawfully exercise or be authorised by

statutory order to exercise powers of compulsory purchase over the pastures or any part thereof:

And whereas it would be highly prejudicial to the general interests of the borough particularly in view of the need for redevelopment hereinbefore mentioned that there should be any obstacle to prevent or delay the acquisition of parts of the pastures for public purposes and it is expedient with a view to the removal of any such obstacle that the provisions in this Act contained with respect to the pastures and the ownership and management thereof and the amendment of the Act of 1849 should be enacted:

And whereas with a view to the prevention of difficulties in matters affecting both the Corporation and the enrolled freemen it is expedient that the provisions in this Act contained with respect to the appointment of a chairman and a secretary or clerk of the enrolled freemen and of the pastures committee and a treasurer for the purposes of the Act of 1849 and with respect to the payment of compensation to the town clerk and treasurer of the borough for determination of office and with respect to access to accounts of the enrolled freemen should be enacted:

And whereas there are in the borough certain schools owned by the Corporation and known as the Freemen's Grammar Schools for the free education of the sons and daughters of the freemen of the borough:

And whereas the said schools are inconvenient and unsatisfactory and in view of the fact that under the Education Acts 1944 to 1948 the Corporation as local education authority for the borough are bound to provide free education for all children of compulsory school age in the borough it is unnecessary and inexpedient that the said schools should continue to be carried on and expedient that the Corporation should be empowered to discontinue them:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this 23 & 24 Geo. 5. Act the requirements of Part XIII of the Local Government c. 51. Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Grimsby Corporation Act Short and 1949 and the Grimsby Pastures Act 1849 and this Act may be collective cited together as the Grimsby Pastures Acts 1849 and 1949. titles.

Interpretation.

2.—(1) In this Act the following expressions shall have the following meanings unless there be something in the subject or context repugnant to such construction:—

“The Act of 1849” means the Grimsby Pastures Act 1849;

“The Act of 1933” means the Local Government Act 1933;

“The appointed day” means the first day of November one thousand nine hundred and forty-nine;

“The borough” means the county borough of Grimsby;

“The borough treasurer” means the borough treasurer of the borough;

“The Corporation” means the mayor aldermen and burgesses of the borough;

“Enactment” includes any Act of Parliament whether public general local or private any order or other instrument made under an Act of Parliament or any provision in an Act of Parliament or in any such order or other instrument;

“The freemen” “the enrolled freemen” and “the pastures” have the respective meanings assigned to those expressions by the Act of 1849;

“Functions” includes powers and duties;

“Land” includes any interest in land and any easement or right in to or over land;

“The pastures committee” means the pastures committee of the enrolled freemen appointed under the Act of 1849;

“The town clerk” means the town clerk of the borough.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

As to
acquisition by
Corporation
of land within
pastures.

3. Nothing in the Act of 1849 or in the relation of trusteeship which the Corporation have held under that Act towards the enrolled freemen shall prevent interfere with or prejudice the grant to the Corporation in pursuance of the provisions of any enactment of authority or power to acquire whether by compulsion or by agreement any part of the pastures or the exercise by the Corporation of any such authority or power which may be or become vested in them in pursuance of the provisions of any enactment.

4. On the appointed day the pastures and all property rights liabilities and obligations which immediately before that day were vested in the Corporation under or by virtue of the Act of 1849 shall vest by virtue of this Act without further assurance in the Official Trustee of Charity Lands for the purposes and subject to the unrepealed provisions of the Act of 1849 and subject and without prejudice to all rights interests charges encumbrances liabilities claims and demands under or by virtue of the unrepealed provisions of the Act of 1849.

Transfer of ownership of pastures from Corporation to Official Trustee of Charity Lands.

5. On the application of the pastures committee and in pursuance of an order of the Charity Commissioners for the purpose of completing or implementing any lawful sale exchange lease mortgage or charge of or other dealing with the pastures or any part thereof or any other property or any rights for the time being vested in the Official Trustee of Charity Lands for the purposes and subject to the unrepealed provisions of the Act of 1849 or otherwise for the benefit of the enrolled freemen such conveyances leases mortgages charges or other instruments as the pastures committee may properly require for that purpose shall be executed by the pastures committee in the name and on behalf of the said official trustee.

Pastures committee to convey &c. on behalf of Official Trustee of Charity Lands.

6.—(1) As from the appointed day the mayor of Grimsby shall cease to act as chairman of meetings of the enrolled freemen.

Chairman of meetings of enrolled freemen and pastures committee.

(2) At any time after the appointed day a meeting of the enrolled freemen may by resolution appoint a person who for the time being is an enrolled freeman to act as chairman of the enrolled freemen. The person so appointed shall if present preside at all meetings of the enrolled freemen until the expiration of such period as may be specified in that behalf in the resolution or any earlier date at which he shall cease to hold office by reason of death or resignation or by reason of his ceasing to be an enrolled freeman or being removed from office by resolution of a meeting of the enrolled freemen. Upon the occurrence of any vacancy in such office of chairman of the enrolled freemen another such appointment may be made to that office.

(3) At any meeting of the enrolled freemen before a person is so appointed to act as chairman or during any vacancy in the office of chairman or if the chairman is not present at the meeting a member of the pastures committee to be elected by the meeting or if all the members of that committee are absent another person being an enrolled freeman to be elected by the meeting shall preside.

(4) The pastures committee shall from time to time appoint one of their number to act as chairman for such period as may be specified in the resolution of appointment.

Treasurer of
enrolled
freemen.

7.—(1) As from the appointed day the borough treasurer shall cease to act as treasurer for the purposes of the Act of 1849.

(2) Before the appointed day the pastures committee shall appoint a person to act from the appointed day as treasurer for the purposes of the Act of 1849 and upon the occurrence of any vacancy in the office of such treasurer after the appointed day the pastures committee shall appoint another person to act as such treasurer.

(3) The treasurer so appointed shall perform all the duties which under the unrepealed provisions of the Act of 1849 are assigned to the treasurer of the borough and as from the appointed day all references in such unrepealed provisions to the treasurer of the borough shall be read and construed as references to the treasurer appointed in pursuance of the provisions of this section.

(4) The pastures committee shall determine the conditions of employment of any person appointed as treasurer in pursuance of this section including the amount of his remuneration.

Clerk of
enrolled
freemen.

8.—(1) As from the appointed day the town clerk shall cease to act as secretary or clerk to the enrolled freemen and to the pastures committee.

(2) Before the appointed day the pastures committee shall appoint a person to act from the appointed day as clerk to the enrolled freemen and the pastures committee and upon the occurrence of any vacancy in the office of such clerk after the appointed day the pastures committee shall appoint another person to act as such clerk.

(3) The clerk shall perform all the duties which under the unrepealed provisions of the Act of 1849 are assigned to the town clerk and as from the appointed day the word "clerk" shall be deemed to be substituted for the words "town clerk" wherever the same are used in such unrepealed provisions.

(4) The pastures committee shall determine the conditions of employment of any person appointed as clerk to the enrolled freemen in pursuance of this section including the amount of his remuneration.

Compensation
to town clerk
and borough
treasurer for
loss of office.

9.—(1) The town clerk and the borough treasurer shall be entitled to receive compensation from the enrolled freemen for any direct pecuniary loss which they may incur by reason of the determination of their offices in pursuance of the provisions of this Act and in the determination of such compensation the provisions of the Fourth Schedule to the Act of 1933 shall apply with the following and any other necessary modifications:—

(a) any reference in that schedule to a scheme or order shall be construed as a reference to this Act; and

(b) any reference in that schedule to the local authority or the clerk of the authority shall be construed as a reference to the enrolled freemen and the clerk to the pastures committee.

(2) Any annuity payable under this section shall be paid out of the moneys which under the provisions of section 62 (Enrolled freemen's fund) of the Act of 1849 are applicable to the payment of expenses of carrying that Act into execution.

(3) Any capital sum payable under this section may be paid out of the proceeds of the sale of land or investments or any other capital money for the time being held by or on behalf of the enrolled freemen.

10. The borough treasurer and any auditor of the accounts of the Corporation and their respective assistants shall be entitled at any reasonable times to have access to and to inspect and to take extracts from any account books deeds contracts accounts vouchers and receipts relating to the accounts of the enrolled freemen for the purpose of ascertaining or verifying the correctness of any sums payable to the Corporation in pursuance of the provisions of the Act of 1849. Right of access to accounts of enrolled freemen.

11. The Freeman's Grammar Schools shall be discontinued and any endowment thereof shall be applied for charitable purposes for the benefit of the inhabitants of the borough in accordance with a scheme made by the Minister of Education under the Charitable Trusts Acts 1853 to 1939 or the Endowed Schools Acts 1869 to 1948. Discontinuance of Freeman's Grammar Schools.

12.—(1) If in consequence of section 11 (Discontinuance of Freeman's Grammar Schools) of this Act or anything done in pursuance thereof an existing officer or existing servant of the Corporation suffers direct pecuniary loss by reason of the determination of his employment or the diminution of his emoluments otherwise than for misconduct he shall be entitled to receive compensation for that loss from the Corporation. Compensation to officers and servants.

(2) In determining the compensation payable to an existing officer or existing servant of the Corporation who becomes entitled to compensation in pursuance of this section the provisions of the Fourth Schedule to the Act of 1933 shall apply with the following and any other necessary modifications:—

(a) any reference in that schedule to a scheme or order shall be construed as a reference to this Act; and

(b) any reference in that schedule to the local authority or the clerk of the authority shall be construed as a reference to the Corporation or the town clerk (as the case may be).

Freemen's Grammar Schools to be held by Corporation as local education authority.

13. The sites and premises of the Freemen's Grammar Schools including the curtilages thereof shall subject to the provisions of section 11 (Discontinuance of Freemen's Grammar Schools) of this Act continue in the ownership of the Corporation but notwithstanding anything in any existing royal charter or in section 262 of the Act of 1933 or any other enactment the same shall be held by the Corporation as local education authority for the purposes of the Education Acts 1944 to 1948.

Power to Corporation to borrow.

14.—(1) Subject to the provisions of this Act the Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 to borrow without the consent of any sanctioning authority the sum or sums requisite for the payment of the costs charges and expenses of this Act and they shall repay any sum so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed under this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

As to exercise of borrowing powers.
8 & 9 Geo. 6.
c. 58.

15. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

Repeals and amendments in Act of 1849.

16.—(1) The sections of the Act of 1849 which are mentioned in the first column of the First Schedule to this Act are hereby repealed to the extent mentioned in the second column of that schedule.

(2) The amendments mentioned in the second column of the Second Schedule to this Act shall be made in the sections of the Act of 1849 mentioned in the first column of that schedule.

Saving for jurisdiction of High Court and Charity Commissioners.

17. Subject to the express provisions of this Act nothing in this Act shall be held to interfere with the ordinary jurisdiction over endowed charities now exercisable or hereafter to become exercisable by the High Court of Justice the Charity Commissioners and the Minister of Education.

Commencement of Act.

18. This Act shall come into operation on the appointed day.

19. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund of the borough or out of moneys to be borrowed under this Act for that purpose. Costs of Act.

The SCHEDULES referred to in the foregoing Act

FIRST SCHEDULE

PROVISIONS OF THE GRIMSBY PASTURES ACT 1849 REPEALED

Section of Act	Extent of repeal
Section 15 (Chairman of meetings).	The whole section.
Section 17 (Proceedings and votes at meetings).	The words "that the mayor as chairman of any meeting shall be entitled to vote thereat although he may not be an enrolled freeman provided also".
Section 21 (General powers of pastures committee).	The words "and shall from time to time report to the council of the borough all breaches and violations of such orders regulations and resolutions and of the byelaws made for the purposes of this Act".
Section 24 (Annual report of pastures committee).	The words "and the Corporation".
Section 27 (Town clerk to act as secretary).	The whole section.
Section 29 (Appointment of treasurer).	The whole section.
Section 34 (Pastures vested in the Corporation for the purposes of the Act).	The whole section.
Section 35 (Execution of the Act by the Corporation).	The whole section.
Section 36 (Byelaws to be made by Corporation).	The whole section.
Section 42 (Certificates of receipt of counterparts).	The whole section.
Section 45 (As to sales and leases to freemen and members of the Corporation).	The word "provisionally" wherever that word occurs.
Section 46 (In the event of no new offer at the meeting Corporation to obtain consent of Treasury as required by 5 & 6 W. 4. c. 76).	The word "provisionally" and the words from "and shall be certified" to the end of the section.
Section 47 (Pastures reverting to the Corporation may be dealt with for any purposes of the Act).	The whole section.
Section 62 (Enrolled freemen's fund).	The words "by the Corporation".
Section 67 (Indemnity of Corporation).	The whole section.
Section 68 (Corporation to bear their own costs).	The whole section.
Section 70 (Corporation not to alienate without consent of Treasury).	The whole section.

SECOND SCHEDULE

AMENDMENTS OF THE GRIMSBY PASTURES ACT 1849

Section amended	Amendments
Section 10 (Special meetings of the enrolled freemen).	The words "the chairman or if there shall be no chairman the clerk of the enrolled freemen" shall be substituted for the words "the mayor".
Section 11 (Notice of meetings).	The words "the chairman or if there shall be no chairman the clerk of the enrolled freemen" shall be substituted for the words "the mayor".
Section 12 (Time and place for meetings).	The words "such convenient place" shall be substituted for the words "the town hall or in such other convenient place" and the words "the chairman or if there shall be no chairman the clerk of the enrolled freemen" shall be substituted for the words "the mayor".
Section 22 (Pastures committee to appoint officers).	The words "such officers besides the clerk and the treasurer" shall be substituted for the words "the town clerk and the treasurer and such officers respectively".
Section 28 (Minutes of proceedings to be made by town clerk).	The words "the clerk of the enrolled freemen in books to be provided for the purpose which shall be kept at the office of the freemen" shall be substituted for the words "the town clerk in books to be provided for the purpose which shall be kept at the town clerk's office".
Section 31 (Regulation as to payments by treasurer).	The words "and such order" shall be substituted for the words "or as to any expenses which the Corporation may under the provisions of this Act require to be paid without the order of their council signed by the mayor and counter-signed by the town clerk and such orders respectively".
Section 37 (Power to lease the pastures for 21 years or less terms).	The words "The pastures committee may" shall be substituted for the words "and be it enacted that the Corporation may and shall from time to time according to the directions of the pastures committee" and the words "counter-signed by the town clerk" shall be omitted.

2ND SCH.
—cont.

Section amended

Amendments

Section 38 (Power to appropriate pastures for building purposes).

The words "The pastures committee may" shall be substituted for the words "and be it enacted that the Corporation may and shall from time to time according to the directions of the pastures committee".

Section 39 (Power to sell and lease pastures for building purposes).

The words "The pastures committee may" shall be substituted for the words "and be it enacted that the Corporation may and shall from time to time according to the directions of the pastures committee" and the words "as well by or on behalf of the Corporation as by or on behalf of such persons respectively" and the words "according to such directions" shall be omitted.

Section 40 (Contracts sales and leases may be made on terms approved by pastures committee but leases not to be renewable).

The words "The pastures committee shall" shall be substituted for the words "and be it enacted that except as by this Act otherwise provided the Corporation may and shall from time to time according to the directions of the pastures committee" and the words "the Corporation or" shall be omitted.

Section 41 (Certain covenants to be inserted in all deeds and leases).

The word "lessor" shall be substituted for the word "Corporation".

Section 44 (In certain cases sales and leases to be made by private contract).

The words "the pastures committee shall" shall be substituted for the words "the Corporation may and from time to time shall according to the directions of the pastures committee".

Section 58 (Investments for the enrolled freemen).

The words "Official Trustee of Charity Lands" shall be substituted for the word "Corporation".

PRINTED BY HENRY GEORGE GORDON WELCH, C.B.E.
Controller of His Majesty's Stationery Office and King's Printer
of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 13a Castle Street, Edinburgh, 2;
39 King Street, Manchester, 2; 2 Edmund Street, Birmingham, 3;
1 St. Andrew's Crescent, Cardiff; Tower Lane, Bristol, 1;
80 Chichester Street, Belfast
OR THROUGH ANY BOOKSELLER

Price 6d. net

(73558)

PRINTED IN GREAT BRITAIN